
Appeal Decision

Site visit made on 15 September 2026

by J Hills MRTPI

an Inspector appointed by the Secretary of State

Decision date: 23 September 2026

Appeal Ref: 6014952

Higher Collybeer Farm, Spreyton, Devon EX17 5BA

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by J Mawle of Odstone Storage Ltd against the decision of West Devon Borough Council.
 - The application Ref is 1315/26/FUL.
 - The development proposed was originally described as “erection of B8 storage unit”.
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Decision

1. The appeal is allowed and planning permission is granted for erection of 4 B8 storage units at Higher Collybeer Farm, Spreyton, Devon EX17 5BA in accordance with the terms of the application, Ref 1315/26/FUL, subject to the conditions in the attached schedule.

Preliminary matter

2. An updated version of the National Planning Policy Framework (the Framework) was issued in August 2026. The main parties have had an opportunity to comment on the relevance of any changes and so, no prejudice has occurred.
3. The application was readvertised as a proposal for 4 B8 units. The appellant is content for the application to be assessed in this way, and I have therefore used this description in the main decision above.

Main issue

4. The main issue is whether the site is a suitable location for the development having regard to the provisions of local and national policy.

Reasons

5. The proposed building would be positioned roadside of a large access drive that serves an adjacent B8 unit. It is in the countryside and while isolated from any settlement, the appeal site is physically well-related to this existing development. A wide access off a busy 'A' road would be utilised and within that context, it is very unlikely future occupiers would use transport modes other than private vehicles.
6. Policy TTV1 of the Plymouth & South West Devon Joint Local Plan (LP) sets out the Council's settlement hierarchy which seeks to focus new employment towards the main towns with their broad range of services. Economic development is only permitted in the countryside where it would support the principles of sustainable development set out in policies SPT1, SPT2, TTV1, TTV26, and DEV15. In the

round, these policies promote sustainable transport modes as well as the expansion of rural businesses.

7. LP Policy TTV26 seeks to protect the special characteristics and role of the countryside, including its best and most versatile agricultural land. Part 1 of it deals with exceptional circumstances whereby isolated development will be permitted. None of these circumstances are applicable to the appeal proposal. Criterion 2(iv) states that development proposals should, where appropriate, respond to a proven agricultural, forestry or other occupational need that requires a countryside location.
8. Although the appellant submits that the existing storage business is oversubscribed, there is little reason why such units could not, in principle, be located in a settlement. Even so, the proposal would remain physically and functionally related to an existing rural enterprise. Although such development is not inherently dependent upon a countryside location, the proposal seeks to expand an established business operating by the appeal site. In that context, the proposed location is a logical consequence of that expansion.
9. LP Policy TTV26 provides that the criteria should be applied where appropriate and does not require every criterion to be satisfied in every case. In that respect, even if there were conflict with criterion 2(iv) it is only one of a number of considerations within the policy. Criterion 2(iii) states that development should be complementary to existing viable uses. The appeal proposal would be connected to an established and viable storage business, representing an extension to that operation rather than the introduction of a new and unrelated countryside use.
10. While the planning history is understood, the existence of this established lawful business attracts significant weight. The loss of grade 3 agricultural land counts against the proposal, though the appeal site is relatively small, and already disturbed by an access track. As such, there would be no meaningful reduction in the availability of agricultural land. Moreover, the benefits of expanding the business would represent a justification for this small loss. For the reasons given, I find no overall conflict with LP Policy TTV26.
11. Turning to national policy, Framework Policy S5 identifies that rural business development may be supported outside settlements where such a location is shown to be necessary. Given the functional relationship between the proposal and the existing business, I am satisfied that this requirement is met. Whilst the Council's reliance on Framework Policy E2 is noted, I have found that S5 does not require a separate demonstration of unmet demand in the circumstances of this appeal. Accordingly, I attach limited weight to this concern.
12. The Council's concerns regarding the countryside location of the development and its reliance on private vehicle travel are noted. Additionally, it is acknowledged that it would be difficult to put restrictions on future occupiers of the storage units. That said, the nature of the proposed use is likely to draw interest from those within a convenient distance. Even if it did not, the evidence indicates that the development would generate a modest level of activity that would be unlikely to result in a significant increase in trips.
13. Furthermore, LP policies DEV15 and TTV2 provide direct support for the growth and proportionate expansion of rural businesses and enterprise. This is consistent with Framework Policy E4 which supports the sustainable growth of businesses in rural areas and expressly recognises that development meeting business needs

may need to be located outside settlements and in locations that are not well served by public transport. Additionally, any such small-scale increase in activity would not conflict with the objectives of Framework Policy TR3.

14. For these reasons, I conclude that the site is a suitable location for the proposed development having regard to the provisions of local and national policy. As such, there would be no conflict with LP policies SPT1, SPT2, TTV1, TTV26, and DEV15.

Conditions

15. The Council has suggested a number of conditions which I have considered against the tests set out in the Framework and Planning Practice Guidance. I have made such amendments and omissions as necessary to comply with those documents.
16. I have imposed a plans condition in the interests of clarity. The officer report identifies that there is an intervening commercial/agricultural development between the appeal site and neighbours. It would not therefore be necessary to restrict the use to that granted by the permission in respect of living conditions. With regard to the effect of the development on the character and appearance of the area, other uses would require express approval of the Council. Moreover, the building's physical appearance would not alter if the use were to change. It is also unnecessary to impose a condition to define what is permitted. For these reasons I have not imposed this suggested condition.
17. While the environmental health officer comments are noted, the appeal building would be some considerable distance from the nearest residential properties, and a storage use has not been shown to warrant restrictions to opening hours. I have not imposed this condition.
18. The evidence before me does not demonstrate that the proposed development would give rise to residential amenity or biodiversity impacts requiring further investigation, mitigation or monitoring beyond that already assessed. Consequently, I am not persuaded that the submission and approval of a Construction and Ecological Management Plan is necessary to make the development acceptable in planning terms, and I have not imposed the condition.
19. In the interests of the character and appearance of the area, I have imposed the suggested lighting condition. A condition securing parking spaces is reasonable in highway safety terms, and a drainage compliance condition is needed to deal with surface water. It is however not appropriate to include BNG requirements, as these are dealt with under separate legislation.

Conclusion

20. For the reasons given, the appeal succeeds.

J Hills

INSPECTOR

Schedule of conditions

1. The development hereby permitted shall begin not later than three years from the date of this decision.
2. The development hereby approved shall be implemented in accordance with the following plans: Exe1; Exe 2; Exe 3; Exe 5, Exe 6; and Exe 7.
3. The parking spaces as shown on approved plan Exe 7 shall be provided prior to the first use of the development hereby permitted and thereafter be retained free of obstruction to enable the parking of vehicles for the lifetime of the development.
4. No external lighting shall be installed on the building unless it is in accordance with details that have been submitted to and approved in writing by the local planning authority. Details shall include design, siting, illumination type, and lux level.
5. Prior to the first use of the development hereby permitted, the surface water drainage scheme shown on drawing Exe 5 shall be fully installed and brought into operation. The drainage scheme shall thereafter be retained and maintained for the lifetime of the development.